Stereo H C J D A 38.

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition No.25636 of 2025

Umer Shehzad

Versus

Ombudsperson (Mohtasib) Punjab and others

JUDGMENT

Date of hearing	15.10.2025
Petitioner by:	Mr. Muhammad Shoaib Rashid, Advocate.
Respondents by:	Mr. Mohammad Osman Khan, Assistant Advocate General, Punjab. Ch. Umar Hayat Kamran Rajoka, Advocate for respondent No.3.
Amicus Curiae	Mr. Aiyan Tariq Bhutta, Advocate.

RAHEEL KAMRAN, J.: In this petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (hereinafter, 'the Constitution') the petitioner has challenged *vires* of order dated 20.03.2025, whereby the Governor of the Punjab while dismissing the representation of the petitioner, affirmed the decision dated 16.02.2024 of the Ombudsperson (Mohtasib) Punjab.

2. Respondent No.3, Mst. Mehwish Riaz, filed Harassment Complaint No.WOP/11-587/2022/53 before the Ombudsperson Punjab, Lahore, asserting that she was serving as an *ad hoc* teacher at the Government Girls Vocational Institute, Satellite Town, Jhang, where the petitioner was posted as DM. It was alleged that the petitioner used to cast indecent glances at the complainant, send her inappropriate messages and continuously attempted to establish illicit relations with her. He purportedly claimed to have rendered several favours in her service matters and demanded reciprocation in return, threatening that if she did not comply, he would cancel her

appointment orders. According to the complaint, the petitioner did not desist from such conduct and on the night falling between 14th and 15th September 2022, came to the complainant's residence, knocked at the outer door, and, upon being questioned, pretended to hand over an application and a letter. It was alleged that he then forcibly entered the house, dragged the complainant into a room, and attempted to commit rape. During the complainant's resistance, her clothes were torn, leaving her partially unclothed. The complainant immediately called Rescue-15, whereupon the petitioner fled the scene. On hearing her cries, witnesses Nazakat Ali and Muhammad Asif, as well as the police, reached the spot. It was further alleged that the complainant's husband was paralyzed and that, following the incident, she was unable to face anyone due to humiliation, while the condition of her husband further deteriorated. The petitioner allegedly continued to extend threats to her, causing severe mental distress to the complainant and her family.

The complaint was contested by the petitioner through a written defence reply, wherein he denied the allegations and took the stance that the brother of the complainant was also an employee of TEVTA and had been allotted an official quarter in which the complainant was also residing. However, due to numerous complaints regarding suspicious persons frequently visiting that quarter, the said allotment was cancelled under the petitioner's orders in his official capacity. It was alleged that owing to this cancellation, the complainant developed a grudge against him and started extending threats. The petitioner further stated that the complainant was serving on daily wages under his supervision in TEVTA and that her services were subsequently terminated, which further intensified her resentment against him. He also contended that in respect of the alleged incident mentioned in the complaint, the complainant had already lodged a criminal case, the trial of which was pending before the Judicial Magistrate at Jhang; therefore, the Ombudsperson had no jurisdiction to entertain the same matter concurrently.

After recording evidence of both parties and evaluating the material available on record, the Ombudsperson, vide decision dated 16.02.2024, held the petitioner guilty of committing harassment against the complainant within the meaning of Section 2(h) of the Protection Against Harassment of Women at the Workplace Act, 2010 **("the Act, 2010")**, and consequently imposed upon him the major penalty of Removal from Service. Aggrieved thereby, the petitioner preferred a representation before the Governor of the Punjab, which was dismissed vide order dated 20.03.2025. Hence, the petitioner has approached this Court through the instant writ petition.

3. Learned counsel for the petitioner contends that the impugned decisions are illegal, perverse and without jurisdiction, having been rendered in disregard of material questions of law and fact. He submits that the complaint was defective *ab initio* for not being verified in terms of sub-rule (3) of Rule 5 of the Protection Against Harassment of Women at the Workplace Rules, 2013 **("the Rules, 2013")** and for not annexing all supporting material as envisaged by sub-rule (2) thereof. Learned counsel maintains that the alleged incident occurred at the complainant's residence (official quarter), which does not fall within the statutory definition of "workplace," thus ousting the Ombudsperson's jurisdiction. He adds that the complainant had also lodged criminal proceedings on the same facts, rendering parallel proceedings impermissible. Learned counsel urged that the Ombudsperson placed undue reliance on unverified WhatsApp screenshots without forensic authentication, while the complainant's witnesses were neither eye-witnesses nor corroborated by independent evidence. Learned counsel further submits that the impugned orders suffered from misreading and non-reading of evidence and have been passed in violation of Section 24-A of the General Clauses Act, 1997. He concludes that major penalty of removal from service is arbitrary, disproportionate, and stigmatizing.

4. Conversely, learned counsel for respondents defends the impugned decisions. He argues that the complaint was competently filed by respondent No.3 in accordance with the provisions of the Act, 2010 and the

rules framed thereunder, and that all procedural formalities were duly observed by the Ombudsperson. Learned counsel submits that the allegations against the petitioner were of a serious and continuous nature, duly substantiated through oral as well as documentary evidence, including the WhatsApp messages and the statements of witnesses, which sufficiently established the petitioner's conduct amounting to harassment within the meaning of Section 2(h) of the Act, 2010. He contends that the petitioner had been afforded full opportunity of defence during the proceedings but failed to produce any cogent evidence to rebut the allegations. Learned counsel emphasizes that the alleged incident, though taking place at the complainant's official residence, had a direct nexus with the working relationship between the parties and, therefore, squarely fell within the definition of "workplace" under Section 2(n) of the Act, as the misconduct arose out of and in connection with employment. He explains that pendency of criminal proceedings in respect of the same occurrence did not bar the Ombudsperson from exercising jurisdiction, as both proceedings operate in distinct legal domains—one addressing criminal culpability and the other workplace misconduct. He further argues that the learned Ombudsperson had passed a well-reasoned and speaking order after a detailed examination of the evidence, and that the findings recorded therein are findings of fact based on proper appreciation of material on record. Learned counsel lastly maintains that the Governor, while exercising appellate jurisdiction, also examined the case independently and found no illegality, procedural defect, or perversity in the decision warranting interference.

5. Learned Assistant Advocate General Punjab submits that both the *fora* had exercised jurisdiction properly, after due compliance with statutory procedure. He supports the impugned decisions and submits that there is no illegality, procedural defect or perversity warranting interference by this Court in its constitutional jurisdiction.

6. The learned *Amicus Curiae* submits that the scope of "workplace" under Section 2(n) of the Act when is read in conjunction with Schedule to Section 2 (c), is broad to ensure comprehensive protection against

harassment. He explains that the definition includes any place arising out of or connected with the employment relationship, even if the physical act occurs outside office premises, as such conduct that originates from or is linked to workplace authority—such as messaging a subordinate employee or visiting her residence in connection with employment—squarely falls within the Act's purview. He further submits that the evidentiary standard in proceedings before the Ombudsperson differs from that in criminal cases; strict rules of evidence are not applicable, and proof on the balance of probabilities suffices and as such the pendency of a criminal case does not oust the Ombudsperson's jurisdiction or preclude parallel disciplinary proceedings.

7. I have heard the arguments advanced by the learned counsel for the parties, learned Assistant Advocate General and the learned *Amicus Curiae* and have perused the record with their able assistance.

8. In the challenge qua proceedings under the Act, 2010, jurisdiction of this Court under Article 199 of the Constitution is supervisory in nature. This Court does not sit as a court of second appeal to re-appraise evidence or substitute its own findings for those of the competent forum. Interference is warranted only where findings are perverse, contrary to law or based on no evidence at all[1]. In the instant case, the primary grounds urged by the petitioner relate to (i) lack of jurisdiction of the Ombudsperson on the plea that the alleged incident did not occur at a "workplace"; the pendency of FIR as well as private complaint qua the same occurrence before the Additional Sessions Judge, and (ii) reliance on unverified WhatsApp messages. As these issues are legal in nature, though intertwined with factual aspects, they require detailed examination.

9. Perusal of the record reveals that respondent No.3 in her complaint made consistent and specific allegations that the petitioner, being her supervisory officer, persistently cast indecent glances at her, sent inappropriate messages and sought to establish illicit relations under the guise of professional favours. He allegedly threatened to cancel her appointment if

[1] *"Raja Tanveer Safdar v. Mrs. Tehmina Yasmeen and others"* **(2024 PLC (C.S.) 957)**.

she refused to comply. The petitioner, in his written defence, did not categorically deny these allegations. His defence was confined primarily to asserting that the complainant had filed a criminal case on the same facts and that, therefore, the Ombudsperson lacked jurisdiction. Significantly, he did not refute the existence of WhatsApp communication between himself and the complainant. Rather, in his written statement, he alleged that the complainant had extended threats to him through mobile phone, thereby indirectly admitting that such communication did exist. During cross-examination, the petitioner did not challenge the authenticity of the WhatsApp messages, nor did he move any application for their forensic verification. His belated denial, first raised in the representation before the Governor and now before this Court, is thus evidently an afterthought, lacking *bona fides*. The complainant, on the other hand, consistently reiterated her version both in her written complaint and oral statement, treating her complaint as statement.

10. Adverting now to the plea of the petitioner qua the occurrence not taking place at the workplace, before proceeding further, it would be apt to reproduce relevant definitions from the Act, 2010. Definition of workplace has been provided in section 2(n) which reads: -

> *"workplace" means the place of work or the premises where an organization or employer operates and includes building, factory, open area or a larger geographical area where the activities of the organization or of employer are carried out and including any situation that is linked to official work or official activity outside the office."*

For better understanding the scope of workplace, it is necessary that the definition of workplace be read in conjunction with the definition of 'harassment', which has been provided in the Schedule to section 2(c) of the Act, 2010. For reference, relevant excerpt of the schedule ibid is reproduced hereunder: -

> *"**Schedule***
> *[See Sections 2(c) and 11]*
> ***CODE OF CONDUCT FOR PROTECTION AGAINST HARASSMENT OF WOMEN AT THE WORKPLACE***

Whereas it is expedient to make the Code of Conduct at the Workplace etc to provide protection and safety to women against harassment it is hereby provided as under:

(i) The Code provides a guideline for behavior of all employees, including management, and the owners of an organization to ensure a work environment free of harassment and intimidation;

(ii) "Harassment" means any unwelcome sexual advance, request for sexual favors or other verbal or written communication or physical conduct of a sexual nature, or sexually demeaning attitudes, causing interference with work performance or creating an intimidating, hostile or offensive work environment, or the attempt to punish the complainant for refusal to comply to such a request or is made a condition for employment;

The above is unacceptable behavior in the organization and at the workplace, including in any interaction or situation that is linked to official work or official activity outside the office.

Explanation:

There are three significant manifestations of harassment in the work environment:

(a) Abuse of authority

A demand by a person in authority, such as a supervisor, for sexual favors in order for the complainant to keep or obtain certain job benefits, be it a wage increase, a promotion, training opportunity, transfer or the job itself.

(b)- - - -

(c)- - - - "

The above definition of harassment includes any unwelcome sexual advance or request for sexual favour and encompasses "abuse of authority,". It is thus manifest from the above definitions that the Act, 2010 does not confine its operation to the physical boundaries of an office building. Section 2(n) defines "workplace" in expansive terms, expressly including "any situation that is linked to official work or official activity outside the office." This definition must be read purposively and in conjunction with the definition of "harassment" contained in the Schedule to Section 2(c), which encompasses unwelcome sexual conduct, verbal or written communication, and abuse of authority, including conduct that occurs in any interaction linked to official

work or official activity beyond office premises. The statutory emphasis, therefore, is not on geography alone, but on the nexus between the conduct complained of and the employment relationship, particularly where supervisory authority is alleged to have been misused.

11. At the same time, it must be clarified that the Act, 2010 does not convert every private dispute or personal misconduct between two individuals into workplace harassment merely because they happen to be colleagues. The jurisdiction of the Ombudsperson is attracted only where the impugned conduct arises out of, is facilitated by, or is inseparably connected with the employment relationship, or where the authority, influence, or power derived from office is used, explicitly or implicitly, to exert pressure, seek compliance, or create a hostile environment. Purely private conduct, wholly unrelated to official duties or abuse of workplace authority, lies outside the purview of the Act, 2010. However, where the misconduct is rooted in a supervisory relationship and is enabled by the leverage of employment, such as threats relating to service benefits, continuance of employment, or official favours, the statutory nexus is firmly established, regardless of the physical location at which a particular incident occurs. This interpretation preserves the protective purpose of the Act while guarding against jurisdictional overreach.

12. Tested against the above principles, the facts of the present case unmistakably disclose a sufficient workplace nexus, thereby excluding the hypothesis that the petitioner's conduct was purely personal in nature. Although it is correct that not every interaction between a superior and a subordinate is *ipso facto* clothed with official character, but the distinction between personal conduct and workplace harassment turns on whether the employment relationship is merely incidental or whether it constitutes the source of power and leverage enabling the impugned conduct. In the present case, the parties did not interact as equals in a private capacity; rather, their relationship was structured by hierarchy and dependence. The complainant consistently alleged that the petitioner, being her supervisory officer, persistently subjected her to unwelcome sexual advances through WhatsApp

messages and verbal conduct, coupled with express and implied threats to cancel her appointment in the event of non-compliance, matters over which the petitioner, by virtue of his office, exercised influence. Such allegations strike at the heart of "abuse of authority" as contemplated in the Schedule to the Act, 2010. While digital evidence ordinarily invites scrutiny, the WhatsApp messages in the present case carry intrinsic probative value when considered in their totality and context. Significantly, as noted in the preceding paragraph No.9, the petitioner, having had full knowledge of the communication during the inquiry, did not challenge the existence, content, or context of the messages in his written defence or during cross-examination, thereby lending indirect corroboration to the complainant's account. Notably, by asserting in his defence that the complainant had been threatening or intimidating him through mobile communication, the petitioner impliedly admitted that he was in communication with the complainant via WhatsApp, confirming the occurrence of such exchanges. Further, the messages are consistent with the pattern of conduct alleged, including explicit and implicit references to service-related consequences, which align with the supervisory authority held by the petitioner. Taken together, these factors provide a sufficient evidentiary foundation under the standard of preponderance of probabilities, justifying reliance on the WhatsApp messages to establish harassment and abuse of authority within the workplace, without necessitating formal forensic certification. The petitioner's alleged visit to the complainant's residence cannot be viewed in isolation; it appears, *prima facie*, to be a continuation of a pattern of harassment that had already manifested through workplace-linked communication and misuse of supervisory authority. Even if the physical occurrence at the residence is momentarily excluded from consideration, the admitted supervisory relationship and the uncontroverted digital communication alone are sufficient to attract the mischief of the Act, 2010.

13. It is observed that in his written reply to the complaint, the petitioner did not categorically refute the allegations made against him.

Instead, he sought to challenge the credibility of the complainant by referencing her personal circumstances and alleged animosity arising from previous administrative decisions. During cross-examination, he continued this line of argument, raising speculative assertions regarding the conduct of her witnesses. These responses, however, were not supported by concrete evidence and do not effectively counter the complainant's consistent account. Significantly, the petitioner admitted to having maintained communication with the complainant, including discussions over WhatsApp and other matters, which confirms the existence of interaction. Such admission, coupled with the uncontroverted evidence of WhatsApp messages, provides an adequate factual basis to establish a pattern of communication consistent with the allegations of harassment. Within the cultural context of our society, it is a reality that women often refrain from immediately disclosing incidents of harassment, not due to acquiescence, but out of concern for their dignity, family honour, and social stigma. Their initial silence, therefore, cannot be construed as waiver, acquiescence, or estoppel against later seeking redress once they gather the courage to report[2]. Viewed in this light, the petitioner's attempt to focus on the complainant's character and personal circumstances does not negate the nexus between his conduct and the supervisory relationship, nor does it materially undermine the evidence supporting the findings of harassment under the Act, 2010.

14. Attention must also be given to the argument of learned counsel for the petitioner that pendency of a criminal case got registered by the complainant on the same facts renders the inquiry by the Ombudsperson impermissible or duplicates criminal proceedings, thereby offending the principle against double jeopardy. This contention fails at the threshold. The principle of protection against double punishment or double prosecution *(non bis in idem)* as embodied in Article 13 of the Constitution of the Islamic Republic of Pakistan, 1973 and codified in Section 403 of the Code of Criminal Procedure, 1898 (Cr.P.C.), is directed against successive criminal trials or punishments based on the same offence. In stark contrast, the

---

[2] *"Uzma Naveed Chaudhary and others v. Federation of Pakistan and others"* **(PLD 2022 SC 783)**.

complaint before the Ombudsperson under the 2010 Act engages a separate statutory discipline and administrative-disciplinary regime, designed to safeguard workplace dignity, regulate conduct, and impose service-related consequences (minor or major penalty), not criminal punishment. The object, purpose, and consequences of such proceedings are distinct from those of a criminal trial. As such, the mere pendency of a criminal case does not automatically oust or suspend the statutory jurisdiction of the Ombudsperson. Disciplinary or administrative inquiries and criminal prosecutions may lawfully proceed concurrently or independently, provided each relates to distinct legal consequences and remedies. Therefore, a criminal complaint does not *per se* operate as a bar against the Ombudsperson conducting an inquiry under the 2010 Act. Reliance is placed on the judgment in the case of "*Raja Tanveer Safdar v. Mrs. Tehmina Yasmeen and others*" **(2024 PLC (C.S.) 957)**.

15. It is further observed that under the Act, 2010 the forum for lodging a complaint of harassment is either the Inquiry Committee constituted under Section 3 of the Act or the Ombudsperson appointed under Section 7 thereof. Section 8(1) of the Act explicitly gives option to an employee to prefer a complaint before either of the said forums. In the present case, the complainant elected to file her complaint before the Ombudsperson in exercise of the statutory option available under Section 8(1) ibid. The manner in which the Ombudsperson is to inquire into a complaint, has been laid down in section 8 of the Act, which reads as under: -

> *"**8. Ombudsperson to enquire into complaint.**—(1) Any employee shall have the option to prefer a complaint either to the Ombudsperson or the Inquiry committee.*
> *(2) The Ombudsperson shall within 3 days of receiving a complaint issue a written show cause notice to the accused. The accused after the receipt of written notice, shall submit written defense to the Ombudsperson within five days and his failure to do so without reasonable cause the Ombudsperson may proceed ex parte. Both eh parties can represent themselves before the Ombudsperson.*
> *(3) The Ombudsperson shall conduct an inquiry into the matter according to the rules made under this Act and conduct proceedings as the Ombudsperson deems proper.*
> *(4) For the purposes of an investigation under this Act, the Ombudsperson may require any office or member of an*

> *organization concerned to furnish any information or to produce any document which in the opinion of the Ombudsperson is relevant and helpful in the conduct of the investigation.*
> *(5) The Ombudsperson shall record his decision and inform both parties and the management of the concerned organization for implementation of the orders."*

Rule 10 of the Rules, 2013 elaborates the procedural framework, which reads: –

> *"**10. Procedure before the Ombudsperson: -** (1) The show cause notice under subsection (2) of section 8 of the Act shall contain all the allegations leveled against the accused by the complainant and copy of the complaint shall be provided along with the notice.*
> *(2) Subject to subsection (2) of section 8 of the Act, on receipt of written defense from the accused, the Ombudsperson shall summon the parties for personal hearing before taking any decision.*
> *(3) The parties shall appear before the Ombudsperson along with supporting material, documents, information or other evidence available with the complainant or the accused.*
> *(4) The Ombudsperson may summon any witness, record or any other material in possession of anybody or authority for the just decision of the case.*
> *(5) The Ombudsperson shall, on the basis of the available evidence, record this decision along with reasons.*
> *(6) In the absence of any express provision regarding conduct of proceedings or inquiry, the Ombudsperson may conduct the proceedings or inquiry in such manner as the Ombudsperson may consider necessary and appropriate for purposes of arriving at just decision of an appeal or a complaint.*
> *(7) The Ombudsperson shall decide a case under the Act as expeditiously as possible and send a copy of his decision to the competent authority for implementation.*
> *(8) Subject to the decision of the Governor on the representation of any party, the competent authority shall implement the decision of the Ombudsperson within thirty days from the date of the receipt of the decision or within such further period as the Ombudsperson may specify and shall within seven days of the implementation of the decision inform the Ombudsperson, the accused and the complainant."*

A plain reading of Section 8 and Rule 10 ibid makes it abundantly clear that the legislature has intentionally refrained from subjecting the Ombudsperson to the rigid, technical and formalistic procedural framework applicable to civil suits or criminal trials. Sub-rule (6) of Rule 10 is of pivotal importance. It expressly authorizes the Ombudsperson, "in the absence of any express provision", to adopt such procedure as he or she may consider "necessary and

appropriate" for arriving at a just decision. This conferment of procedural flexibility is neither accidental nor superfluous. It reflects a deliberate legislative design to ensure that complaints of workplace harassment often sensitive, interpersonal and context-specific are resolved in a manner that is fair but not encumbered by the technicalities that might stifle or frustrate the delivery of justice. Significantly, neither the Act nor the Rules contain any express provision mandating the Ombudsperson to adhere to the formal rules of procedure that govern civil courts (such as the Code of Civil Procedure, 1908) or criminal courts (such as the Code of Criminal Procedure, 1898). Equally, there is no requirement necessitating compliance with the strict rules of evidence contained in the Qanun-e-Shahadat, 1984. The entire scheme of the Act underscores that the Ombudsperson is not a criminal court, nor is the inquiry akin to a criminal prosecution. It is, in essence, a specialized administrative and disciplinary proceeding intended to address workplace misconduct and protect women employees from abuse of authority and sexual harassment. Where the legislature intended strict procedural adherence in other statutes, it has said so expressly; its silence here is therefore meaningful. Had the legislature intended the Ombudsperson to conduct proceedings as a full-fledged trial bound by Qanun-e-Shahadat, 1984, it would have explicitly provided so. The presence of Rule 10(6), granting wide procedural discretion, negates any such interpretation. Courts have consistently held that administrative and disciplinary authorities vested with quasi-judicial powers are required to observe principles of natural justice, but are not bound by the technical rules of criminal evidence and procedure[3]. The Ombudsperson's forum functions on the civil standard of proof i.e. preponderance of probabilities and not on the criminal standard of proof beyond reasonable doubt[4]. Therefore, the objection that the Ombudsperson did not follow the formal requirements of the Qanun-e-Shahadat, 1984 or procedures akin to a criminal trial is misconceived. Owing to the statutory framework, the Ombudsperson is neither required nor expected to apply the technical rules of

---

[3] *Rahat Naseem Malik v. President of Pakistan and others* **(2003 PLC (C.S.) 759).**

[4] *"Nadia Naz and another v. The President of Islamic Republic of Pakistan Islamabad and others"* **(PLD 2023 SC 588)**.

admissibility, mode of proof, or forensic rigour applicable to criminal proceedings. The statutory emphasis is on substantial justice rather than procedural formality. The purpose of the Act would be defeated if the Ombudsperson were straitjacketed into rigid procedural norms, thereby frustrating the expeditious and sensitive resolution of harassment complaints envisaged by the law.

16. As regards the contention of the learned counsel for the petitioner that the complaint was defective *ab initio* for not being verified in terms of sub-rule (3) of Rule 5 of the Rules, 2013 and for not annexing all supporting material as envisaged by sub-rule (2) thereof, I find the objection misconceived and untenable. Rule 5 lays down the contents and ideal form of a complaint but does not prescribe any penal consequence for non-compliance, nor does it declare such omissions to be fatal to the maintainability of the complaint. For ready reference, Rule 5 of the Rules, 2013 is reproduced below: -

> *"**5. Contents of the complaint:-** (1) A complaint shall contain a comprehensive statement of the facts relating to the incident of harassment, all necessary details, names of witnesses and any other material, details or evidence in support of the complaint.*
> *(2) All documents, evidence or other supporting material in whatever form such as audio, video or documentary, shall be annexed with the complaint.*
> *(3) The complainant shall verify that the information contained in the complaint is true and correct to the best of knowledge and belief of the complainant.*
> *(4) A party may amend the complaint or written defense at any stage of the inquiry.*
> *(5) The complainant shall sign the complaint or affix the thumb impression on the complaint.*
> *(6) The accused shall sign the written defense or affix the thumb impression on the written defense."*

The scheme of the Act and the Rules demonstrates that the proceedings before the Ombudsperson are intended to be substantive and remedial rather than technical or hyper-formalistic. This is further reinforced by Rule 5(4), which expressly permits amendment of the complaint at "any stage of the inquiry," indicating that even if particulars or supporting material were incomplete at the inception, the law contemplates their supplementation during the inquiry

process. Likewise, sub-rule (5) requires only the signature or thumb impression of the complainant and not attestation in any particular manner. In this context, the requirement of verification in sub-rule (3) must be construed as directory rather than mandatory. Non-verification or improper verification of plaint/complaint is mere an irregularity which does not entail penal consequences of rejection of plaint/complaint. Guidance in this respect is found in the judgment of this Court in the case of *"Standard Chartered Bank (Pakistan) Ltd. through Authorized Attorney v. Needle Point (Pvt.) Ltd. through Chief Executive and others"* **(2016 CLD 2066 (Lahore))**. Furthermore, Rule 5 does not create a jurisdictional bar. The Ombudsperson's jurisdiction flows from Section 8 of the Act and not from perfection of the complaint's format. Once a complaint discloses allegations which, if proved, would constitute "harassment" within the meaning of Section 2(h) of the Act, the Ombudsperson is empowered to issue notice and proceed with the inquiry. The objection regarding lack of particulars is further neutralized by the statutory mechanism, as the accused is provided with the complaint, afforded an opportunity to file a written defence and both parties are summoned for personal hearing along with their material. The Ombudsperson could have, as a matter of procedural prudence, required the complainant to verify the complaint or furnish missing annexures before proceeding with the inquiry. Such measures serve to prevent any potential prejudice to the accused and strengthen the integrity of the process. Notwithstanding these omissions, the petitioner was fully apprised of the allegations and afforded ample opportunity to respond. The petitioner has failed to demonstrate any prejudice caused by such alleged defect. In these circumstances, the complaint cannot be treated as nullity and the Ombudsperson rightly entertained and proceeded with it in accordance with law.

17. When examined in light of the above principles and on the standard of preponderance of probabilities, the conclusion regarding the guilt of the petitioner reached by the Ombudsperson, affirmed by the Governor, appears to be not only in consonance with law but also reasonable and logical

inference that could be drawn from the material available on the record in the given facts and circumstances of the case.

18. For the foregoing reasons, the findings recorded by both the *fora* are neither perverse nor unsupported by the record, nor do they suffer from any jurisdictional defect or legal infirmity so as to warrant interference by this Court. Consequently, petition in hand is dismissed.

(RAHEEL KAMRAN)
JUDGE

Announced in the open Court on _____

JUDGE

Approved for reporting.

JUDGE

Azhar*